

words, they don't appear to be behaviors tied to prosecution of the lawsuit.

Plaintiff complains that Defendant has already had the opportunity to file a cross complaint, and should not be given another. But there was no bad faith in Defendant's unsuccessful bid to file a cross complaint. Defendant is self-represented, and attempted to file a cross-complaint within an amended Answer. This was a procedural error, nothing more. Defendant then filed an appropriate motion for leave to file a cross complaint the very next day after the court on the unsuccessful attempt. This is not the behavior of a party acting in bad faith.

Considering that the spirit of the law is one in which courts should be liberal in granting such requests in the absence of bad faith, this court will allow leave to file a cross complaint but for only the third and fourth causes of action.

**Disposition**

Defendant's Motion is granted, but only for the third and fourth causes of action.

Defendant must file this Cross Complain within 5 calendar days of this ruling.

Defendant also to file the order on this Motion.

7. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

**\*HEARING ON MOTION FOR DISCOVERY FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED**

**FILED BY: TD BANK USA, N.A.**

**\*TENTATIVE RULING:\***

Plaintiff filed a motion to deem as true matters requested for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

**Disposition**

Motion will be continue to 6/2/26, 9am.

Court will notify Defendant.